

## **Tentative Rulings for Department 403**

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**Tentative Ruling**

Re: **John Roe 927 D.W. v. County of Fresno**  
Superior Court Case No. 22CECG03958

Hearing Date: June 17, 2026 (Dept. 403)

Motion: By Defendant County of Fresno for Terminating Sanctions  
Against Plaintiff John Roe 1002 J.R.

**Tentative Ruling:**

To grant. County of Fresno shall submit to the Court, within ten (10) days of this order, a proposed order dismissing, with prejudice, this action as it relates to plaintiff John Roe 1002 J.R.

**Explanation:**

Noncompliance with compelled discovery justifies terminating sanctions. (See Code Civ. Proc., §§ 2023.010, subd. (d); 2023.030, subd. (d)(3).) This court is also guided by the principle that "[t]he sanctions the court may impose are such as are suitable and necessary to enable the party seeking discovery to obtain the objects of the discovery he seeks ...." (*Caryl Richards, Inc. v. Superior Court* (1961) 188 Cal.App.2d 300, 304.)

On June 17, 2025, defendant County of Fresno propounded on Plaintiff John Roe 1002 J.R., Special Interrogatories, Set Two; and Request for Production of Documents, Set Two. Because plaintiff failed to serve any response to the discovery, the County filed a motion to compel responses. On December 9, 2025, the court granted the motion and ordered plaintiff to serve responses to the discovery within 30 days, and ordered plaintiff to pay \$520 in sanctions. Plaintiff never served responses to the discovery, and has not made contact with the County's counsel. In light of this plaintiff's history of failure to comply with discovery obligations, failure to comply with the court's order, and failure to respond to this dispositive motion, it appears that plaintiff has abandoned the litigation and that no lesser sanction would promote compliance. Terminating sanctions are necessary and justified. The motion is therefore granted.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

**Tentative Ruling**

Issued By: SMC on June 16, 2026.  
(Judge's initials) (Date)